

TENTATIVE RULINGS

In Re: Matter of Jefri Iraheta
26PR000402

Guardian Ad Litem Application

Minor's Compromise Petition

Hearing Date: September 18, 2026

Xiomara Chicas-Torres is the mother of 12-year-old claimant Jefri Iraheta ("Minor"). Ms. Chicas-Torres applies for an order appointing her as Claimant's guardian ad litem. She also petitions this Court to approve the compromise of Claimant's disputed claims.

Guardian Ad Litem Application

The guardian ad litem application of Ms. Chicas-Torres is **DENIED WITHOUT PREJUDICE**. Because both Ms. Chicas-Torres and Minor are claimants in the settlement with Julio Ortega, a potential conflict of interest exists. Therefore, the Court must appoint an independent guardian ad litem for Minor—one who is not a claimant, actual or potential, in the incident related to the settlement with Mr. Ortega. The revised application should include a Proposed Order.

Minor's Compromise Petition

In light of the Court's ruling on the guardian ad litem application, the petition to compromise Minor's disputed claims is **CONTINUED** to November 6, 2026, at 8:30 a.m. in Department 14. The continuance allows a person other than Ms. Chicas-Torres to apply for and obtain an order appointing them as Minor's guardian ad litem. The appointed guardian ad litem for Minor must then file by October 30, 2026, an amended petition to compromise Minor's claims against Mr. Ortega.

NOTE REGARDING TENTATIVE RULINGS

Each tentative ruling becomes the Court's order, and no hearing shall be held unless a party contests. [Cal. Rules of Ct., rule 3.1308; Super. Ct. Monterey County, Local Rules, rule 7.9.] The party wishing to present oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, EACH TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT, AND THE RELATED HEARING WILL BE VACATED.** You must notify the Court by [email](#) or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.